

CRISIS IN SRI LANKA: IS THERE A WAY OUT?

DESCENT FROM A MODEL ASIAN DEMOCRACY TO CHRONIC VIOLENT CONFLICT

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For many decades, up to the time of national independence, Sri Lanka appeared to be pre-eminent among the countries of Asia, perhaps excluding Japan alone, in respect of social development, economic prospects, and political stability. But it was an illusion as shown by our disastrous record since then, particularly over the last quarter of a century. In terms of some key social indices, we are yet ahead of many of our neighbours but have fallen behind several others. In economic development, we have fared even worse. The few countries which were ahead of us have drawn away and many of those who were behind have overtaken us or seem likely to do so in the not too distant future. But Our biggest failing has been in the political field.

At the time of independence, it appeared that our political institutions were more advanced and better equipped to meet the many challenges of a modern democracy in the second half of the 20th century than those of almost any other country in Asia. But we have since got repeatedly bogged down in a long succession of political disasters. Every attempt to escape from our crisis appears to first bring a glimmer of hope, but then to lead us into a deeper crisis.

By the eighties, the most pessimistic among us had begun to compare our predicament with those of others seemingly caught up in the most hopeless of ethnic problems, such as those in Palestine, Northern Ireland and Cyprus. Today, from our perspective, such a comparison looks unreasonably optimistic. Unlike in those countries, war is continuing in Sri Lanka and not even a stalemate is in sight. In addition to the miseries directly contributed by the violence in our island, there is more misery on account of its very considerable ill effects on socio-economic development and political democracy. The downward spiral is continuing. Is there a way out?

All of us have surely some hope that, however dismal the immediate prospects may be, the answer, eventually, is yes. If we had no such hope, this paper would not have been written or published, and will not be read. If there is a way out, how can we progress along it?

I will not waste time in tracing the origins of the crisis in Sri Lanka (most of us

know the facts well enough) or in apportioning blame for past mistakes. That is history. We do need to look at history. But we can use or misuse it to escalate the conflict, or we can learn from it and use that knowledge and understanding to extricate ourselves from the mess we are all entangled in.

The Futility of War and the Need for a Negotiated Settlement

The first and most important lesson, that our history, especially our recent history, could have taught, if we were willing to learn, is that war does not solve our problems but makes them worse. We need to draw a distinction between rebellion based on the felt grievances of an ethnic group (such as the ongoing LTTE revolt) and that based on class or other conflicts (such as the JVP revolt). In the context of recent events in, and the ancient history of Sri Lanka, without external intervention, revolt of the former kind cannot succeed (since it is inconceivable that the government of Sri Lanka will ever consider division of the country as an option); nor can it be crushed (without first dealing with the political causes of the conflict to the satisfaction of the minorities). In other countries too, since World War 2, very few rebellions based on the felt grievances of large ethnic groups have been crushed without first negotiating a political settlement; in turn, few such rebellions have succeeded without the backing of foreign governments. The only alternative to a negotiated settlement is continued violence with indefinitely prolonged and increasing suffering.

What could be the parameters of a negotiated solution? Judging our past attempts to find one, there is broad understanding on what type of solution we must seek. We need some kind of federal constitution with considerable devolution to the provinces. It is occasions when we worked towards such a goal that we came close to an end to the conflict. Regional autonomy was broadly the basis of the Bandaranayake-Chelvanayakam Pact in 1958, the UNP government's Provincial

Council Scheme of which the 13th Amendment to the Constitution was the first step, and recently, what has been called the Package, which is yet alive but in considerable difficulties.

I need to qualify my reference to federalism and regional autonomy. Although one of the objectives is to enable the populations of the North and East to enjoy a substantial measure of self government, the units of devolution need not be engineered to be exclusively mono-ethnic or mono-linguistic. There are in fact benefits in taking advantage of the measure of correlation existing between ethnic identity and the provinces we have historically inherited, and dangers in the redrawing of provincial and district boundaries. Perhaps some adjustments may be found to be necessary but these should be kept to the minimum. In any case these details should emerge from the negotiations and should not be pre-determined.

I need to further clarify that the devolution package sought should not be seen as fixed for all time. A lasting solution does not imply a static one but, rather, reaching a stage from which, in time, further progress can be made. For example, there could, in due course, without compromising the unity and integrity of the State, be a greater degree of devolution or further devolution to sub-units or both. We need to solve our present problems without precluding the options of subsequent generations to solve theirs.

The Need to Evolve a National Political Consensus

Working out a satisfactory solution is not easy. But the even bigger problem is to get it politically accepted. Again, learning from past experience, a solution cannot be unilaterally imposed by any government, however powerful, but needs the backing of a broad national consensus.

The B-C Pact negotiated by the then very powerful MEP Government was scuttled by protests initiated

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ated by the then weak UNP opposition. The Provincial Council Scheme worked out by the then very powerful UNP Government was not supported by either the SLFP, then politically very weak, or by the LTTE, which had no political representation whatever. The scheme nominally survives but has not contributed to solving the crisis. Now, the Package has been rejected by both the UNP and the LTTE. Hopes that it will bring peace are receding. The lesson is clear. At the very least, the SLFP, the UNP and the LTTE must, sooner or later, openly or tacitly, endorse any proposal if it is to progress and lead to a settlement of the conflict. Negotiating only with those with whom agreement

can be easily reached may be comfortable, but may not end the conflict or lead to an effective and enduring solution.

It may appear that it would be easier to work out a settlement if the LTTE could be eliminated militarily or excluded from the negotiations. But again, judging from our past experience, the former may not be feasible in the near future, and the latter may render the negotiations irrelevant. Other countries have had similar experiences in attempting to avoid dealing with seemingly intractable groups claiming to represent minorities and engaged in violent activity against the State. Examples include the UK in relation to the IRA, and India and Pakistan in relation to several minority ethnic militant groups. Negotiating with such groups need not imply recognising them as the sole representatives of the ethnic groups concerned. In the case of the LTTE, if it refuses to participate at the commencement of the negotiations, at least it should be induced to do so at an early stage. This will be less difficult to achieve if the main opposition party is in the negotiation process and the invitation to the LTTE and the terms of the invitation are endorsed by that party.

It is essential that before the final details are worked out, the leadership of the hill country Tamils and of the Muslims, especially of the North and East, should be brought into the negotiations. Support of the parties of the left, the trade unions and one or two of the other Tamil parties of significant political standing is also necessary to form a consensus or a near consensus. To get the SLFP, the UNP and the LTTE to commence negotiations is the biggest hurdle. Once this hurdle is cleared, as negotiations progress, it is likely that most of the other parties would wish to enter the process.

Dynamic Potential of the Negotiation Process

On the face of it, judging from past experience, it may appear that the common ground, the parameters of the acceptable to the SLFP, the UNP and the LTTE at any point in time, may not be adequate to even launch any meaningful proposal, let alone constitute the basis of a final settlement; that the main Opposition party may not, in any case, find it in its interests to support any settlement proposed by the government and that while the LTTE may, from time to time, be willing to enter into negotiations, it is unlikely to pursue the process to its conclusion, since the LTTE seems to be committed to secession to the exclusion of any kind of federalism. From a static perspective, this does appear to be the case.

But if we understand negotiation as a process which could constantly and, in time, profoundly change the political environment, it may be possible to achieve

results which may not appear to be feasible at the commencement of the negotiation process. Parties which entered the negotiations which declared or undeclared reservations and commitments may feel compelled, as the negotiations process, to abandon, gradually, some of their reservations and to revise some of their commitments. Several of the other parties which chose to keep out or were kept out in the early stages may be sucked into the process once it gathers critical momentum. We may observe such developments in other countries, for example in relation to problems in Northern Ireland, Palestine and Bosnia: in these cases the negotiation process has begun but is as yet in the early stages.

Such an exercise has never been falsely undertaken earlier in Sri Lanka. We need to start from scratch, though we would learn from the last. In the past the starting point has been either a government backed package secretly worked out and abruptly brought in as the basis of a settlement or, even worse, the convening of an all party conference with free entry into the negotiation of virtually all including the most disruptive of groups with only marginal political support. The former is likely to provoke and crystallise outright opposition to critical components of the package from key parties excluded from its formulations, and the proposal is then doomed to failure; the latter, the all party conference, inevitably disintegrates under the centrifugal pressures generated by a babel of conflicting demands from a multiplicity of parties uninterested in reaching a settlement.

We should, instead, see negotiations as a dynamic process designed to incorporate, as early as possible, the parties whose support is critical to any settlement, simultaneously working out the elements of the package maintaining a consensus of those already within the process, and progressively attracting and incorporating parties outside in such a manner that the process is advanced and not disrupted.

Need for an Effective Implementation Strategy

Even if the agreement has been worked out and the new legislation is in place, there is no guarantee that it will be effectively implemented. The settlement could be subverted by inertia or by sabotage or by a combination of these factors. Who will oversee and ensure effective im-

plementation? In the case of the Provincial Council's Scheme, the Government ministers, secretaries and heads of departments at the centre were, predictably, reluctant to let go the power they had been exercising. In consequence, they interpreted the laws and regulations designed to devolve some of their powers in such a manner that virtually annulled devolution.

In respect of this scheme, a small high powered team committed to effective devolution and charged with authority to interpret the new legislation and to give directions to the ministries and depart-

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ments in respect of implementation could have made a difference. In the absence of such a body, it is virtually left to individuals in authority in ministries and departments in Colombo to voluntarily relinquish substantial components of their authority to the provinces in

terms of the 13th Amendment which contained many ambiguities. It could not have worked, and did not.

A second major problem in respect of the Provincial Council Scheme is that the seven provinces outside the North and the East were dominated by UNP Chief Ministers who were, by and large, political lightweights in relation to the Cabinet Ministers at the Centre. Even if they were motivated to attempt to wrench power due to the Provincial Councils they were unable to do so. If the implementation strategy had included provision for several Cabinet Ministers to resign and take over as Chief Minister in the provinces, the political balance between the centre and the provinces could have tilted in favour of the latter, resulting in more substantial devolution. This would have been even more effective if, together with the Cabinet Ministers, some of the senior Secretaries in Colombo were also transferred to the provinces to take over as Chief Secretaries.

The third major handicap to the Provincial Council Scheme was the exclusion of the SLFP. They boycotted the first round of elections to the new Provincial Councils and had no stake in the effective functioning of any of the Provincial Councils. Had some of the Councils come under their control, they may have been motivated to support rather than oppose devolution. In fact, this was what happened when Provincial Council elections were next held. The SLFP won in some of the provinces and, thereafter, spearheaded the demand for effective devolution. But parliamentary elections quickly followed and the SLFP won those elections as well.